



ARIZONA HOUSE OF REPRESENTATIVES FLOOR AMENDMENT EXPLANATION

57th Legislature, 2nd Regular Session

Majority Research Staff

HB 2610: utility relocation; funding; bonds

BLACKMAN FLOOR AMENDMENT

1. Restores the stipulation that, in order for a municipality to reimburse a telecommunications utility for relocation costs, the project must be funded in whole or in part by voter-approved municipal bond proceeds.
2. Directs a municipality to:
 - a. provide the telecommunications utility with public notice of any voter-approved municipal bond project at least 30 days before a request to relocate; and
 - b. develop a reimbursement process for a telecommunications utility to apply for reimbursement of the relocation costs of the telecommunications utility's facilities.

M. LAVENDER

2/24/2026

(602) 926-3848

BLACKMAN SUBSTITUTE FLOOR AMENDMENT
HOUSE OF REPRESENTATIVES AMENDMENTS TO H.B. 2610

I move the following SUBSTITUTE amendment to the GOVERNMENT Committee Amendment to HOUSE BILL 2610 (Reference to printed bill)

Amendment instruction key:

[GREEN UNDERLINING IN BRACKETS] indicates text added to statute or previously enacted session law.
[Green underlining in brackets] indicates text added to new session law or text restoring existing law.
[GREEN STRIKEOUT IN BRACKETS] indicates new text removed from statute or previously enacted session law.
[Green strikeout in brackets] indicates text removed from existing statute, previously enacted session law or new session law.
<<Green carets>> indicate a section added to the bill.
<<Green strikeout in carets>> indicates a section removed from the bill.

1 The bill as proposed to be amended is reprinted as follows:

2 Section 1. Section 9-461.17, Arizona Revised Statutes, is amended
3 to read:

4 9-461.17. Telecommunications utility relocation; cost
5 reimbursement; definitions

6 A. ~~To the fullest extent allowed by law,~~ If any construction
7 project in any municipality that is undertaken individually or jointly by
8 an intergovernmental contract [and that is funded in whole or in part by
9 voter-approved municipal bond proceeds] requires that a telecommunications
10 utility adjust or otherwise relocate the telecommunications utility's
11 facilities, the municipality shall reimburse the telecommunications
12 utility, or cause the telecommunications utility to be reimbursed, for the
13 telecommunications utility's relocation costs incurred on facilities
14 located within the municipal boundaries.

15 B. If the telecommunications utility has existing land rights, the
16 municipality shall provide at the municipality's expense the
17 telecommunications utility with equal land rights in the new location of
18 the relocated facilities. If the telecommunications utility's existing
19 facilities are located in the right-of-way under a permit, the
20 municipality shall provide at the municipality's expense the
21 telecommunications utility with rights in the new location of the
22 relocated facilities equivalent to the telecommunications utility's
23 existing rights under the permit.

24 C. A telecommunications utility shall submit a verified itemized
25 claim to the municipality for reimbursement of relocation costs within one
26 hundred eighty days after each calendar quarter in which a
27 telecommunications utility incurs relocation costs.

1 D. The municipality shall:

2 1. Review each verified itemized claim submitted pursuant to
3 subsection C of this section. The review may include an audit conducted
4 pursuant to standard industry accounting principles.

5 2. Reimburse the telecommunications utility for the relocation
6 costs within ninety days after receipt of the verified itemized claim.

7 3. Reimburse verified itemized claims from all affected
8 telecommunications utilities in the order of receipt.

9 [4. AT LEAST THIRTY DAYS BEFORE A REQUEST TO RELOCATE A
10 TELECOMMUNICATIONS UTILITY'S FACILITY, PROVIDE THE TELECOMMUNICATIONS
11 UTILITY WITH PUBLIC NOTICE OF ANY VOTER-APPROVED MUNICIPAL BOND PROJECT.]

12 5. DEVELOP A REIMBURSEMENT PROCESS FOR A TELECOMMUNICATIONS UTILITY
13 TO APPLY FOR REIMBURSEMENT OF THE RELOCATION COSTS OF THE
14 TELECOMMUNICATIONS UTILITY'S FACILITIES.]

15 E. The reimbursement limitation for paid claims of relocation costs
16 for telecommunications utility facilities for which there are no existing
17 land rights is not more than two percent of the total project
18 monies. [The total of the project monies is the total dollar amount of
19 all voter-approved municipal bond proceeds that fund a construction
20 project from time to time.]

21 F. The total amount of reimbursement paid for claims of relocation
22 costs of all telecommunications utility facilities for which there are no
23 existing land rights may not exceed the reimbursement limitation.

24 G. If a verified itemized claim causes the total amount of all
25 claims for telecommunications utility relocation costs to exceed the
26 reimbursement limitation, that claim shall be reduced so that the total
27 amount of reimbursement paid for all claims for which there are no
28 existing land rights equals the reimbursement limitation.

29 H. If the dollar amount of the reimbursement limitation increases
30 as a result of an increase in total project funds after the previous
31 reimbursement limitation is exhausted, within thirty days after the
32 reimbursement limitation is increased the municipality shall resume
33 processing previously submitted and new verified itemized claims under
34 this section.

35 I. The reimbursement limitation does not apply to any claims for
36 reimbursement of relocation costs for telecommunications utility
37 facilities with existing land rights or any amounts paid by the
38 municipality to provide equivalent land or permit rights. These claims
39 and amounts are excluded from the reimbursement limitation.

40 J. This section does not:

41 1. Apply to a construction project funded in whole or in part with
42 voter-approved municipal bond proceeds if approval of the bonds was
43 referred to the voters, or the initiative petition for the bonds was
44 applied for, before January 1, 2017.

45 2. Prohibit a municipality from complying with other applicable
46 law, or with an agreement, that requires the municipality to reimburse a

1 telecommunications utility for more relocation costs than this section
2 provides.

3 K. For the purposes of this section:

4 1. "Intergovernmental contract" means the joint exercise of powers
5 authorized by title 11, chapter 7, article 3.

6 2. "Municipality" includes a charter city.

7 3. "Relocation costs" means all costs of relocating a
8 telecommunications utility's facilities that the telecommunications
9 utility incurs as a direct result of the construction and operation of a
10 construction project. Relocation costs do not include profit but may
11 include a reasonable allocation of general overhead expenses.

12 4. "Telecommunications utility" means any public service
13 corporation, licensed cable television operator, video service provider,
14 telephone line or telegraph line corporation, agricultural improvement
15 district or other person engaged in the transmission, sale or delivery of
16 telecommunications, telephone, cable television, video, internet or
17 telegraph service directly to the public or to other users as to be
18 effectively available directly to the public.

19 Enroll and engross to conform

20 Amend title to conform

WALT BLACKMAN

2610FloorBLACKMAN.docx

02/20/2026

03:47 PM

C: MU

130ZHLJTX